

Smt. Sumanbai Wd/O Trymbakrao & 4 Ors vs Smt. Gangabai Tryambakrao Katre & 2 Ors on 4 January, 2020

Author: Pushpa V. Ganediwala

Bench: Pushpa V. Ganediwala

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY,
NAGPUR BENCH, NAGPUR.

SECOND APPEAL NO. 539 OF 2007

1. Smt. Sumanbai wd/o Trymbakrao Katre,
Aged about 52 years,
Occ. Agriculturist / Household work
2. Vijay s/o Trymbakrao Katre,
Aged about 30 years,
Occ. Agriculturist / Labourer
3. Ku. Reena d/o Trymbakrao Katre,
Aged about 25 years, Occ. Education

All 1 to 3 R/o Adgaon Khade,
Tahsil Anjangaon Surji,
District Amravati
4. Sau. Jaishree Ganeshrao Nawalkar,
Aged about 28 years,
Occ. Household Work,
R/o. Near Kala Maroti Mandir,
Ranpisenagar, Akola,
Tahsil and District Akola
5. Sau. Neeta Nandkishor Kharate,
Aged about 27 years,
Occ. Household work,
R/o. Sawantwadi, Akola,
Tahsil and District Akola

.... APPELLANTS

VERSUS

1. Smt. Gangabai Tryambakrao Katre,

Aged about 44 years, Occ. Agriculturist,

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2. Ku. Kirti Tryambakrao Katre
Aged about 17 years,
Occ. Education
3. Ku. Kanchan Tryambakrao Katre,
Aged about 17 years,
Occ. Education

All 1 to 3 R/o. Kawatha Bk.
Tahsil Chandur Bazar,
District Amravati

...RESPONDENTS

Shri A.A. Naik, Advocate with Shri Madhur Deo, Advocate
for appellants.
Shri H.D. Dangre, Advocate for respondent Nos. 1 to 3.

CORAM :	PUSHPA V. GANEDIWALA, J.
DATE OF RESERVED :	NOVEMBER 06, 2019
DATE OF PRONOUNCED :	JANUARY 04, 2020

ORAL JUDGMENT :

Heard Shri Madhur Deo, learned counsel for appellants and Shri H.D. Dangre, learned counsel for the respondent Nos. 1 to 3. The parties herein are referred as per their status before the trial Court.

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2. This is the defendants' appeal against the concurrent judgments and decree of both the Courts below in a Suit bearing Regular Civil Suit No. 13/2000 for Partition and Separate Possession which came to be decreed in favour of plaintiff Nos. 2 and 3 by judgment and decree dated 04/08/2005 and the Regular Civil Appeal No. 81/2005 against the said decree came to be dismissed vide judgment and decree dated 25/06/2007.

3. This second appeal was admitted on the following questions of law :

(i) Whether plaintiff Nos. 2 and 3 could get a share in the property left behind by their grand mother Banubai, they being illegitimate children of Tryambakrao ?

(ii) Whether the plaintiff could claim a share in the residential house in view of Section 23 of the Hindu Succession Act, 1956 which then held the field ?

202SA539.2007 During the argument, learned Counsel for both the parties requested this Court to consider the following additional substantial question of law.

(iii) Whether illegitimate child has right in the ancestral property ?

4. The facts in brief necessary to decide this appeal are as under :

In a suit for Partition and Separate possession, the plaintiff No. 1 claimed to be legally wedded wife of deceased Tryambakrao @ Bandu Govindrao Katre and plaintiff Nos. 2 and 3 claimed to be their daughters. They filed a suit for their shares in the properties left by deceased Tryambakrao.

5. Defendant No. 1 claimed to be the first wife of deceased Tryambakrao and defendant Nos. 2 to 5 are her children from Tryambakrao while defendant No. 6 is the purchaser of part of the suit properties.

6. The suit property consisting of lands bearing Gat Nos. 71, 357, 339 and 233 ad-measuring around 20 HR., a 202SA539.2007 residential house bearing No. 106, one cow shade alongwith some movable properties and cash which is more particularly described in the paragraph No. 1 of the plaint. Plaintiffs pleaded that deceased Tryambakrao was the owner of the suit properties. Defendants in their common written statement simply resisted the suit without any specific pleadings with regard to the nature of the suit properties in the hands of deceased Tryambakrao.

7. The learned trial Court framed necessary issues and recorded evidence as adduced by both the parties. On the basis of material before the Court, the learned trial Court held that plaintiff No. 1 is not the legally wedded wife of deceased Tryambakrao. However, plaintiff Nos. 2 and 3, being legitimate children of deceased Tryambakrao as per Section 16 of the Hindu Marriage Act, 1955, are entitled to have their shares in the properties left by deceased Tryambakrao. These findings of the learned trial Court were confirmed by the First Appellate Court in R.C.A. No. 81/2005.

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8. In the present second appeal, the learned Counsel on behalf of both the parties submitted that though the question with regard to entitlement of illegitimate children for their shares in the ancestral property is pending for consideration before the Hon'ble Apex Court in the case of Revanasiddappa V/s Mallikarjun (2011) 11 SCC 1, this Court may decide the appeal as per the current position of law and, therefore, this Court vide order dated 21/11/2018 took the matter for final hearing.

9. On perusal of pleadings of both the parties and the evidence on record, there is no serious dispute with regard to the nature of property in the hands of deceased Trymbakrao. Plaintiff asserted that Trymbakrao was the owner of the suit property. The defendant simply denied the same without any specific pleading. As there was no dispute with regard to the nature of the suit property between the parties, the issue in this regard may not have been framed by the trial court.

10. Coming back to the appreciation of evidence, undisputedly, Trymbakrao died on 26/06/1996 and the mother 202SA539.2007 of Trymbakrao late Banubai died on 22/08/1996 i.e. after two months of the death of Trymbakrao. Succession to the suit property opened on the death of Trymbakrao. Section 16(3) of the Hindu Marriage Act, 1955 confers property rights to the legitimate children out of void marriage in the property of thier parents. For ready reference Section 16(3) of the Hindu Marriage Act, 1955, reads thus:

"Section 16 - Legitimacy of children of void and voidable marriages -

(3) Nothing contained in sub-section (1) or sub-section (2) shall be construed as conferring upon any child of a marriage which is null and void or which is annulled by a decree of nullity under Section 12, any rights in or to the property of any person, other than the parents, in any case where, but for the passing of this Act, such child would have been incapable of possessing or acquiring any such rights by reason of his not being the legitimate child of his parents"

11. Evidently, plaintiff Nos. 2 and 3 are the children of Trymbakrao from plaintiff no. 1 during the subsistence of first marriage of Trymbakrao with defendant No. 1. As rightly held by both the Courts below that plaintiff Nos. 2 and 3 are entitled to have their shares in the property left by deceased Trymbakrao.

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12. With regard to their shares, the plaintiff Nos. 2 and 3 are not entitled to have shares in the property left by Banubai in view of bar of Section 16(3) of Hindu Marriage Act, 1955. However, defendant Nos. 1 to 5 are entitled to have their shares in the property left by Banubai. The learned Counsel Shri Dangre strenuously relied on the judgment of Hon'ble Apex Court in the case of Revanasiddappa V/s Mallikarjun (2011) 11 SCC 1 wherein it is observed that Section 16(3) of Hindu Marriage Act, 1955 does not speak about the nature of property in the hands of parents and, therefore, Section 16(3) is applicable to any property irrespective of the nature of the property.

13. The Hon'ble Apex Court in the aforesaid judgment, although, after detailed discussion took a view which is contrary to the view taken by the Hon'ble Apex Court in the case of Jinia Keotin Vrs Kumar Sitaram Manjhi reported in (2003) 1 SCC 730 and referred the question for the consideration of larger Bench. It is well settled that the prima facie view 202SA539.2007 expressed while referring the question for consideration, does not have the force of precedent and the view which is holding the field prior to referring the question would prevail.

14. Shri Madhur Deo, learned Counsel has rightly pointed out the judgment of Hon'ble Apex Court in the case of Commissioner of Central Excise, Meerut Vrs. Kothari Pouches Ltd. reported in (2005) 13 SCC 504 wherein their Lordships have held that prima facie opinion while referring the question for consideration is neither binding nor final. This Court in the Second Appeal No. 278/2015 vide judgment dated 29/04/2019 relied on the judgment of Jinia Keotin Vrs. Kumar Sitaram Manjhi (supra) and observed that "the consistent judicial opinion appears to be that notwithstanding that a reference to a larger Bench is pending, the view prevailing would be decisive and it would not be necessary for this Court to await the decision in reference".

15. In Jinia Keotin Vrs. Kumar Sitaram Manjhi (supra) judgment the Hon'ble Apex Court took the view that "So far as 202SA539.2007 Section 16 of the Act is concerned, it expressly provides that nothing contained in Sub-section (1) or Sub-section (2) shall be construed as conferring upon any child of a marriage, which is null and void or which is annulled by a decree of nullity under Section 12, "any rights in or to the property of any person, other than the parents, in any case where, but for the passing of this Act, such child would have been incapable of possessing or acquiring any such rights by reason of his not being the legitimate child of his parents."

16. The Hon'ble Apex Court also held that in the light of such an express mandate of the legislature itself, there is no room for according upon such children who but for Section 16 would have been branded as illegitimate any further rights than envisaged therein by resorting to any presumptive or inferential process of reasoning, having recourse to the mere object or purpose of enacting Section 16 of the Act. Any attempt to do so would amount to doing not only violence to the provision specifically engrafted in Sub-section (3) of Section 16 of the Act but also would attempt to Court re-legislating on the subject 202SA539.2007 under the guise of interpretation, against even the will expressed in the enactment itself."

17. For the reasons aforesaid there is no merit in the appeal, however, with regard to shares amongst the parties, the judgment and decree of the Court needs to be modified to the extent that plaintiff Nos. 2 and 3 are entitled to 5/40th share each while defendant Nos. 1 to 5 are entitled to 6/40th shares in the property left by deceased Tryambakrao as defendant Nos. 1 to 5 would get additional 1/5th share each in the share of Banubai i.e. /40th of the suit property.

18. Needless to say that as per Section 23 of the Hindu Succession Act, 1956, as it stood then plaintiff Nos. 2 and 3 being female Class 1 heir of deceased Tryambakrao, they have no right to claim partition in the dwelling house, however, they are entitled to a right of residents therein, if they are unmarried or has been deserted by or has separated from their husband or widow, unless defendant No. 2 - Vijay choose to demand partition.

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19. In this view of the matter, all the substantial questions are answered accordingly. In the circumstances appeal is partly allowed in the above terms, however, parties shall bear their own costs.

JUDGE D.S. Baldwa